PROPERTY MANAGEMENT AGREEMENT

Granite Apartments | Richmond, VA

Owner	Granite Apartments Owner LLC
Manager	Orion Commercial Management
Property	Granite Apartments, 3686 Industrial Way, Richmond, VA 60296
Agreement Date	September 10, 2021

1. Appointment. Owner appoints Manager as the exclusive managing agent of Granite Apartments, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Management Fee. Manager shall receive a monthly management fee equal to 4.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of VA.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Spending Authority. Manager may incur expenses not exceeding $428,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only